



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: PODS Case No. C-036058 regarding Police Officer Donald Thomas, Tax No. 952291

Date: May 22, 2026

This disciplinary matter was investigated by Police Department investigators, who substantiated a sole allegation that Police Officer Donald Thomas engaged in off-duty employment without authorization.

On May 29, 2025, Police Officer Thomas was engaged in off-duty employment as a fitness instructor. While he was working, he saw an individual collapse. Police Officer Thomas immediately began cardiopulmonary resuscitation (CPR), attached an automated external defibrillator, and administered two shocks to the individual. Police Officer Thomas continued CPR until Emergency Medical Services and the Suffolk County Police Department arrived. Police Officer Thomas' actions saved the individual's life.

Police Officer Thomas made the required Department notifications, and the matter was internally investigated. The investigation revealed that Police Officer Thomas's off-duty employment authorization had expired.

After thoroughly reviewing this matter, I have determined that, although Police Officer Thomas was engaged in unauthorized off-duty employment, his actions that night saved a person's life and, on balance, he should not be unduly penalized. Given the unique circumstances of this incident, and Police Officer Thomas' excellent reviews and lack of prior formal disciplinary history, a penalty less than what is provided for in the Department's "Disciplinary System Penalty Guidelines" is warranted.

Therefore, a penalty of instructions will be imposed in this matter.


Jessica S. Tisch
Police Commissioner